LIBERAL PARTY OF AUSTRALIA

Federal Director

14 November 2025

Committee Secretary
Joint Standing Committee on Electoral Matters
PO Box 6021
Parliament House
CANBERRA ACT 2600

Dear Committee Secretary,

Thank you for the opportunity to contribute to the Joint Standing Committee on Electoral Matters' inquiry into the conduct of the 2025 federal election.

Performance of the Australian Electoral Commission

The administration of the 2025 federal election was in line with expectations. The election was administered competently and efficiently by the Australian Electoral Commission (AEC).

There was an improved approach from the AEC in relation to its administration of the authorisation regime. In our view, the AEC's application of the authorisation regime demonstrated greater consistency and predictability than in previous elections.

We remain of the view, however, that the authorisation regime – and its administration by the AEC – requires further reform and improvement (see below).

New funding and disclosure regime

The Liberal Party will work constructively with the AEC to prepare for the introduction of the new funding and disclosure regime.

Other submissions to the Committee may seek to relitigate the legislative reform package that was passed in the last parliament. However, given the significant changes that all political participants are currently working to implement, we respectfully suggest that there should be a pause on any further significant legislative reform to the funding and disclosure regime until the current changes are fully implemented.

Given the complex nature of electoral legislation, and the relatively limited cohort of interested parties, we suggest establishing a standing working group involving representatives from all major political parties and the AEC to ensure a common understanding of electoral matters.

A similar arrangement exists for industrial legislation through the National Workplace Relations Consultative Council Act. It includes various employer and employee representatives and functions to ensure legislation – whether it be supported or not – is as workable as possible in practice.

Federal Secretariat, RG Menzies House, Cnr Blackall & Macquarie Streets, Barton ACT 2600

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Incidents of bad behaviour

We welcome the [redacted] Government's belated recognition that campaign workers, volunteers and candidates are often subject to aggressive conduct and intimidating behaviour during election campaigns.

Liberal Party volunteers have been the subject of aggressive bullying, physical and verbal abuse from the Left for decades.

This has been detailed in successive Liberal Party submissions to this Committee.

For example, the Liberal Party's submission to the JSCEM's inquiry into the conduct of the 2022 federal election stated:

> *Once again, the 2022 election saw a number of incidents of illegal behaviour take place outside of polling locations.*
>
> *Liberal Party volunteers were subject of aggressive bullying as well as physical and verbal abuse.*
>
> *Female Liberal volunteers were subjected to deliberate attempts to intimidate them. Many of the Party's female volunteers felt so targeted by this behaviour that they left the polling booths they were working on.*[1]

This sort of conduct continued during the last term of parliament. Particularly concerning incidents took place during the Dunkley by-election, with [redacted] volunteers acting aggressively, screaming at Liberal campaigners and physically blocking and invading the personal space of Liberal campaign workers. One very serious matter was reported to and pursued by the police.

During the 2025 election campaign, Liberal candidates and volunteers were subject to verbal abuse and intimidatory behaviour from [redacted] and [redacted] volunteers right around the country.

There was also an increase in the theft and damage of campaign property, particularly signage, by [redacted] and [redacted] campaigners, including but not limited to one very high-profile incident in the electorate of Kooyong.[2]

While section 327 of the Commonwealth Electoral Act was a positive reform that followed the Committee's 2019 report (which makes it unlawful to interfere with the free exercise or performance of a political right or duty), we are not aware of law enforcement agencies pursuing such cases to date.

The authorisation framework

Given the complexity involved, the Liberal Party welcomed the October 2024 decision of the AEC to defer changes to its Authorisation Determination until after the election.

[1] Liberal Party of Australia's submission to the Joint Standing Committee on Electoral Matters' inquiry into the 2022 federal election.

[redacted]

The authorisation framework needs to be clear and understandable. Its application needs to be predictable, objective and consistent.

Unfortunately, this has not always been the case.

For example, guidance from the AEC on how to authorise TikTok and Instagram carousels where moving images are accompanied by in-platform music, but where the platform prevents a user from adding their own audio authorisation, has not always been clear or consistent.

The Liberal Party will work constructively with the AEC on any future changes to the Authorisation Determination.

Furthermore, careful consideration should be given to the authorisation framework and how it should operate in an AI environment, including circumstances where voters can use search engines or large language models to ask questions and receive answers that aren't always sourced or attributed.

Political content dressed up as "news"

A new development at the last election was the emergence of what *appeared* to be local news outlets that weaved very one-sided political stories – clearly intended to promote specific candidates and criticise Coalition policy – within a mix of other local news content, providing the pretence of being a genuine "news" publication.

Late last year, a new online "news" source, called "Gazette News" emerged, which has the following "titles":

- The North Shore Lorikeet
- The Eastern Melburnian
- The West Vic Brolga
- The Mid North Coaster
- The Gippsland Monitor
- The National Account[3]

The five local titles all operate and advertise in geographic areas closely mirroring electorates that were strongly contested by so-called [redacted]', backed by Climate 200 at the last election.

These digital platforms promoted stories on [redacted] candidates for the 2025 federal election. For example, as reported in the Sydney Morning Herald:

> *The outlet focuses much of its political coverage on Climate 200-backed [redacted] without mentioning the candidates are backed by [redacted]'s funding vehicle.*
>
> *'[redacted] candidate [redacted] goes door-to-door in Inverloch," one reporter writes in the Gazette's Gippsland Monitor, dated March 3.*

[3] See www.gazettenews.au

> *In an Instagram post on the page of Gazette's West Vic Brolga on March 3, a journalist asks: "What are you doing tonight? If you're in or around Warrnambool, you might want to pop into Deakin Uni to catch the [redacted] candidate making a play for Wannon, [redacted], in conversation with [redacted]."*
>
> *The posts and articles have been shared by [redacted] candidates including Bradfield's [redacted], who in February posted a North Shore Lorikeet article covering her launch event, titled: "[redacted] says the major parties have failed Bradfield."*[4]

These digital platforms also promoted stories heavily criticising Coalition policy, including alarmist content about nuclear power. For example, the following articles all appeared in different Gazette News titles on the same day:

- "Disaster at proposed Mount Piper nuclear site could impact North Shore residents".
- "Nuclear fallout under Coalition plan could reach Mid North Coast, new report claims".
- "Disaster report shows 30km nuclear plume descending on Melbourne's eastern suburbs".[5]

Various stories were subsequently turned into ads that Gazette News ran on digital platforms.

Candidates associated with Climate 200 engaged with Gazette News material and linked to these stories in their social media posts.

Neither Gazette News, nor any of the individual publications, are members of the Australian Press Council.

The president of Country Press Australia, [redacted], warned of the threat posed to the integrity of political advertising regulations and public trust in truly independent news sources from politically motivated news outlets like Gazette News:

> *"It's all too easy now to set up a 'news' website that publishes political propaganda dressed up as journalism and amplified through social media campaigns," he said.*
>
> *"Most of our Country Press Australia member newspapers have news websites and a history dating back well over 100 years," he said.*
>
> *"We are concerned the actions of this single organisation could undermine the respect readers have for authentic public interest journalism."*[6]

[redacted]

It has been reported the primary backers of Gazette News include [redacted], [redacted] ([redacted]) and [redacted].[7] According to the AEC's Transparency Register, these individuals and company have collectively donated over $2,000,000 to Climate 200, Senator [redacted] and [redacted] MP [redacted] since FY2021-22.

These individuals have demonstrated a clear financial connection to Climate 200 and its associated candidates and had an evident interest in influencing the 2025 federal election.

There are important questions arising from this that we urge the Committee to consider:

1. Does Gazette News' presentation of paid political advertising as online editorial content avoid its material being designated as electoral matter? (See section 4AA(5)(a) of the Electoral Act.)

2. Does Gazette News thereby avoid the requirement to authorise its paid political advertising, which would indicate to voters that they are seeking to have their vote influenced, and are not being misled by a fake online news site?

3. Does Gazette News' presentation of paid political advertising as online editorial content avoid its advertising being designated as electoral expenditure?

4. Does Gazette News thereby avoid the requirement to furnish annual returns as either a third party or significant third party?

If Gazette News is really a legitimate news organisation, will it join the Australian Press Council, as other digital only publications have done?

Ensuring influencer content is appropriately authorised

There have been a number of reports of online content creators being paid by political parties and candidates, without disclosing that they were in receipt of payment.

In late 2021 it was reported that the [redacted] Party had engaged a US-based marketing agency which was "paying TikTok users to post anti-Scott Morrison sponsored content".[8]

On 26 March 2025, the Sydney Morning Herald reported:

> *"The [redacted] Party has compensated some of the social media influencers who covered the federal budget for their travel to Canberra, after inviting them to attend the lock-up as part of a campaign strategy to court prominent online voices..."*[9]

On 11 April 2025, the ABC reported that:

> *"[redacted]t MP [redacted] has admitted to paying an agency to commission social media content from influencers.*

[redacted]

> *Instagram content creator [redacted] posted several videos this month, with a few disclosing they were "made in collaboration with [redacted] ". "*[10]

On 17 April 2025, the ABC reported that:

> *"The podcast company associated with the satirical news publication Betoota Advocate has been quietly contracted to run an election strategy podcast strategy for [redacted] on behalf of the [redacted] Party, the ABC can exclusively reveal."*[11]

[redacted], who produces political content on [redacted]" platforms (with 478,000 followers on Instagram, 176,000 subscribers on YouTube and 118,000 followers on TikTok) recently spoke of the inevitability of parties spending money on influencers:

> *"Do I worry that a politician might approach me with a checkbook to get their endorsement? We'll see how large that number is. But I mean, it's inevitable, right?*
>
> *Because that's essentially what influencers are. Marketing has now just infiltrated our friend groups and just everyday punters. And so now everyone's selling you something no matter what it is.*
>
> *And so politics is another product to sell. So of course, it's definitely going to happen for sure."*[12]

If influencers are in receipt of funding from a political party or independent (or through an agency acting on behalf of a political party or other political actor), voters deserve to know.

The Electoral Act requires that electoral matter communicated "by, or on behalf of, a disclosure entity, that is intended to affect voting in a federal election" be authorised.

The Act (section 321D) specifies that authorisation of electoral matter is required if the content of an advertisement is <u>approved</u> by a person, whether or not that person is a person who has <u>paid</u> for the distribution or production of the advertisement.

Given the growth of new forms of online content and the rise of online influencers with very large audiences, could it be possible for a political party, associated entity or third parties, to pay content creators without necessarily "approving" the content and requiring their own authorisation?

Political parties could not, and would not, contemplate trying to get around disclosure rules by paying television, radio or print media identities to give them favourable coverage. However, it would appear they can online. Transparency in politics is very important. Voters deserve to know when content they are receiving is electoral matter and who is funding it.

[redacted]

We encourage the Committee to investigate whether content creators or 'influencers' are being paid by Australian political entities (either directly or through intermediaries) to produce electoral matter and, if it occurs, whether the authorisation requirements of the Electoral Act are being complied with.

We also encourage the Committee to investigate whether the distinction that exists in the Electoral Act between who approves electoral matter and who pays for the communication of the electoral matter is fit for purpose. We encourage the Committee to investigate whether other relevant sections of the Electoral Act are fit for purpose.

Cybersecurity

Cyber threats to parties, candidates, and the AEC have increased. A coordinated national framework for detecting, reporting, and mitigating cyber incidents is overdue. Current arrangements rely heavily on ad hoc responses and inconsistent reporting standards between parties, platforms, and agencies.

A unified approach should:

- Establish clear protocols for real-time information sharing between the AEC, security agencies, and registered political parties.
- Create a rapid-response mechanism for incidents during election periods.

Thank you for the opportunity to provide this submission.

Yours sincerely,

[redacted]

Andrew Hirst
Federal Director